

Child Labour (Prohibition and Regulation) Act, 2000

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Child Labor (Prohibition and Regulation) Act, 2056

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2057.3.17

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2056.10.17

Amending Acts

- 1. Republic Strengthening and Amendment of Some Nepal Laws Act, 2066 2066.10.17
- 2. Amendment of Some Nepal Acts Act, 2072 2072.11.13
- 3. Act to Amend, Consolidate, Adjust and Repeal Some Nepal Laws, 2074 2074.6.30
- 4. Amendment of Some Nepal Acts Act, 2075 2075.11.19

Act No. 1 of the year 2056

An Act Made to Provide for the Prohibition and Regulation of Child Labor

Preamble: Whereas it is desirable to prohibit the engagement of children in factories, mines or other such hazardous work, and to make necessary provisions regarding the health, safety, service and facilities of children when engaging them in other work,

Parliament has enacted this Act in the twenty-ninth year of the reign of His Majesty King Birendra Bir Bikram Shah Dev.

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Chapter-1

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Preliminary

1. Short Title and Commencement: (1) This Act may be cited as the "Child Labor (Prohibition and Regulation) Act, 2056".

(2) This Act shall come into force on such date as the Government of Nepal may, by notification in the Nepal Gazette, appoint. This Act has been appointed to come into force from 2061.8.1. (Nepal Gazette date 2061.7.30)

2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Child" means a child who has not completed the age of eighteen years, amended by the Act to Amend, Consolidate, Adjust and Repeal Some Nepal Laws, 2074.

(b) "Establishment" means an establishment as referred to in clause (j) of Section 2 of the Labour Act, 2074, amended by the Amendment of Some Nepal Acts Act, 2075.

(c) "Manager" means a manager as referred to in clause (d) of Section 2 of the Labour Act, 2074, amended by the Amendment of Some Nepal Acts Act, 2075.

(d) "Day" means a period of twenty-four hours beginning at midnight.

(e) "Week" means a period of seven days beginning at midnight on Saturday or at midnight on any other day as prescribed by the Department of Labour.

(f) "Medical Practitioner" means a medical practitioner prescribed by the Department of Labour.

(g) "Certificate of Fitness" means a certificate given pursuant to subsection (4) of Section 7.

(h) "Prescribed" or "as prescribed" means prescribed or as prescribed by the rules made under this Act.

(i) "Labour Office" means an office as referred to in clause (gha) of Section 2 of the Labour Act, 2074, added by the Amendment of Some Nepal Acts Act, 2075.

Chapter-2 Prohibition on Engaging Children in Work

Child Not to be Engaged in Work: (1) No person shall engage a child who has not completed the age of fourteen years as a worker.

3. **Child Not to be Engaged in Work Against Will:** No person shall engage a child as a worker against his/her will by alluring, coaxing or deceiving, or by any inducement, or by causing fear, terror or pressure, or in any other manner.

Chapter-3

Provisions Relating to Engaging Children in Work

5. Notice to be Given: (1) A manager who, at the time of commencement of this Act, is operating a hazardous occupation or work specified in the Schedule shall, within thirty days from the date of commencement of this Act, give written notice to the Labour Office specifying the following particulars:-

(a) Name and address of the establishment,

(b) Name and address of the manager,

(c) Nature of occupation or work operated by the establishment, and

(?) ????? ????????? ???? ????????? ? (d) Other particulars as prescribed.

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 ?????? (?) ?????????? ?????? ?????? ? (2) A manager who, after the commencement of this Act, operates a
 hazardous occupation or work specified in the Schedule shall, within fifteen days from the date of operating
 such occupation or work, give notice to the Labour Office in accordance with subsection (1).

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Approval to be Obtained: (1) If any establishment has to engage a child in work, it shall obtain the approval of the concerned Labour Office or any other body or officer prescribed by that Office, and of the father, mother or guardian of the child.

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 approval under this section shall not be required for engaging a child in work organized by a teaching

institution approved by the Government of Nepal or an institution established under the prevailing law working for the protection of the rights and interests of children, for the overall benefit of the child, or in a cultural program.

(?) (2) While granting approval to engage a child in work under subsection (1), the Labour Office may impose suitable conditions on the concerned establishment with the objective of developing the skill and qualification of the child and providing education, and the establishment shall comply with such conditions.

7.

Certificate of Fitness to be Obtained: (1) Before engaging a child as a worker, the establishment shall obtain a certificate of fitness that such child is capable of working as a worker.

(2) To obtain the certificate of fitness under subsection (1), the establishment shall submit an application to the Labour Office stating the nature of work to be performed by such child and his/her age.

(3) Upon receipt of the application under subsection (2), the Labour Office shall cause a medical practitioner to medically examine such child.

(4) If, upon medical examination of the child by a medical practitioner under subsection (3), such child is found fit for work, the medical practitioner shall give a certificate of fitness in the prescribed format.

(5) The certificate of fitness given under subsection (4) shall remain valid for one year.

(6) The certificate of fitness given under subsection (5) shall be renewed by the concerned establishment through a medical practitioner.

(7) The fee for obtaining and renewing the certificate of fitness shall be borne by the concerned establishment.

(8) An establishment which, at the time of commencement of this Act, has engaged a child who has completed the age of fourteen years in work, shall obtain the certificate of fitness within thirty days from the date of commencement of this Act.

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(?) ?????? ?????????? ???? ?????????? ? (k) Other particulars as prescribed.

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